



Order under Sections 30 & 31 Residential Tenancies Act, 2006

Citation: Costa v Poss, 2025 ONLTB 94056

Date: 2025-12-10

File Number: LTB-T-073605-23

In the matter of: 5 JOHN ST
OAKVILLE ON L6K1G7

Between: Edgar Costa Tenants
Liudmyla Anastasieva

And

Mary Poss Landlord

Edgar Costa and Liudmyla Anastasieva (the 'Tenant') applied for an order determining that Mary Poss (the 'Landlord'):

- entered the rental unit illegally.

- substantially interfered with the reasonable enjoyment of the rental unit or residential complex by the Tenant or by a member of their household.
- harassed, obstructed, coerced, threatened or interfered with the Tenant.

The Tenants also applied for an order determining that the Landlord failed to meet the Landlord's maintenance obligations under the *Residential Tenancies Act, 2006* (the 'Act') or failed to comply with health, safety, housing or maintenance standard

The application was heard by videoconference on August 20, 2025.

The Landlord, the Landlord's legal representative, N. Schernitzki, and the Tenant, E. Costa, attended the hearing. The Landlord's helper, S. McKay, and the Landlord's witnesses, S. Basiliere, S. Offer, and K. Purdy also attended the hearing.

Determinations:

Preliminary Issues:

Tenants' Last-minute Disclosure:

1. The Landlord sought to exclude 387 pages of the Tenants' evidence that was submitted only two days prior to the hearing, in contravention of Rule 19.1 of the Board's Rules of Procedure.
2. I excluded the Tenants' 387 pages of evidence for the following reasons. The Tenants filed their application in September 2023, and they were intending to primarily rely on a home inspection that was undertaken at least a year prior to the hearing. The Tenant, E. Costa (EC) was unable to explain any urgent reason for submitting the lengthy evidence only two days prior to the hearing. He had also properly disclosed the home inspection report that he intended to rely on much earlier, and there was therefore no need for him to rely on the extensive last-minute evidence.

Tenants' Identical Claim in Superior Court:

3. It became evident, after a review of the Tenants' disclosure, that they had an almost identical matter to their T2 application allegations that was still ongoing in Superior Court. Consequently, I dismissed the T2 application, and I only proceeded with the Tenants' T6 application.

Tenants' Amended Application:

4. The Tenants had amended their application to add new maintenance issues. I determined that we would not proceed on any new allegations related to the kitchen or bathroom because they were worded in a way that was too vague, for example, merely stating that the kitchen or bathroom were in a state of disrepair without detailing what was in disrepair. This wording was not clear enough in date or detail to meet the threshold of clearly explaining the issue so that the Landlord would understand the case they were required to meet to defend the allegations.
5. Further, the Tenants had added completely new issues related to windows and doors that I determined were not amendments. They were issues that could be the basis of a completely new application, and they were not appropriate for amendment.
6. Consequently, I proceeded to hear evidence only on the maintenance issues that were clearly alleged in the original application, i.e. issues related to air conditioning, a smoke extractor, a freezer, and a deck.

Tenants' T6 Application:

7. The rental unit is a single family house. The Tenants moved into the rental unit with their two children on May 1, 2023, and they moved out on May 14, 2025.

Air conditioning:

8. EC said that he told the Landlord on May 1, 2023, that the air conditioning was not functional. He said that the message was conveyed to the realtor who arranged the tenancy through a What's App message. EC said that he was given a telephone number to contact the Landlord at the beginning of the tenancy, but she never picked up. He submitted into evidence a text message from the realtor dated May 3, 2023, responding to a completely unrelated complaint of the Tenants, saying that the realtor would mention the issues to the Landlord. EC said that nothing happened. He said that the Landlord undertook a full inspection on July 5, 2023, but never told him the result of the inspection. EC submitted into evidence a home report, conditioned by himself, dated July 31, 2024, that said that the a/c operation had "limited colling" and recommended service. It stated "higher blowing temperatures than required."
9. EC said that the air conditioning did not work until August 5, 2024, when the Landlord undertook a repair.
10. EC said that the summer of 2023 was terrible. He said that he and his family could not be in the house between the hours of 10 a.m. and 5 or 6 p.m. He said that his wife, a psychologist who does consultations in the house, was unable to do carry them out in the overheated house, and she had to rent an office downtown. EC said that when he was taking care of the children he had to go outside the house. He said that the family suffered for at least 70 days in 2023. EC said that there were 29 days in 2024 that there were similar, unbearable conditions, until the unit was repaired.

Kitchen Extractor Fan:

11. EC said that the kitchen extractor fan was not working and he was unable to cook. He said that he told the realtor on May 3, 2023, and the Landlord inspected on a few occasions in July 2023, August 2024 and October 2024, and there was no repair. EC pointed to his own home inspection of July 31, 2024, as mentioned above, which states that the kitchen ventilator is "acceptable". He had no documentary evidence of informing the Landlord about the kitchen extractor fan. He said that the ventilator was fixed on November 11, 2024.
12. EC said that as a result of the lack of a working ventilator there was smoke and bad smells in the house. He said that he was unable to cook certain foods, and they often ordered in breakfast, sometimes twice per week.

Freezer:

13. EC said that the home inspection report of July 31, 2024, states that the freezer is “below desired temperatures”. He said that he informed the Landlord about the freezer through the realtor at the beginning of May 2023.
14. EC said that the Landlord never fixed nor replaced the freezer. He said that he was unable to put much food in the freezer, and he could not have fish or meat stored there.

Deck:

15. EC said that the wood deck out back was rotten and in danger of imminent collapse. He submitted into evidence two undated photos of one rotting wood plank on the deck, and a small piece of a plank that looked frayed. He said that the photos were taken by his home inspector in July 2024. EC said that he told the Landlord about the deck on July 5, 2023.
16. EC said that he and the family never went on the deck because it was unsafe.

Landlord’s Response:

17. The Landlord said that the realtor never told her about any maintenance issues brought by the Tenants in May 2023. She said that the only thing she was told was there was a small spot of discolouration on the kitchen ceiling where there was a repair. She said that she was unable to completely erase the discolouration except to paint the entire ceiling.
18. The Landlord said that she discovered that the Tenants had used fraudulent documents in order to obtain the tenancy, so when the Tenants failed to pay any rent after moving in, she retained the services of a private investigation service in July 2023. She sent them to inspect the property, and approach the Tenants about voluntarily moving out. She said that when they asked the Tenants about the arrears, they denied any were owed.
19. The Landlord submitted into evidence an “Investigation/Surveillance Report” by her private investigators, written on August 4, 2023. In it, there is a reported conversation between the Tenants and the investigators in which the Tenants were asked about alleged deficiencies in the property, and they replied that they could not think of any. When pressed further, they told the investigators that the “air conditioning was working but not as well as the neighbours.” Her investigators said that they informed the Tenants about making an application to the Board.
20. The Landlord said that she first learned about the Tenants’ own home inspection report of July 2024 on November 20, 2024. She said that she does not remember anything about issues with respect to the air conditioning, freezer, deck or extractor fan. However, she said that when she received it in November 2024, she gave it to her experienced general contractor, S. Basiliere (SB) to look into any problems raised.
21. The Landlord’s witness, K. Purdy (KP) is the manager of the private investigation firm. She confirmed what was written in the surveillance report, mentioned above in paragraphs #18

and #19. She said that when her firm investigated in summer 2023 they observed no damage, nor anything concerning with maintenance. She said that the Tenants did not tell her investigators about any maintenance issues. She said that when they returned in August 2023 they observed one rotting deck board.

22. The Landlord's witness, SB is a general contractor. He said that he inspected the rental unit on November 8 and November 11, 2024. He said that he found the house in generally good repair. SB said that he found two deck boards with partial rot, and he replaced them with cedar boards. Otherwise, he said it was structurally sound. He said that he inspected the freezer, and found it in good repair, with all the food frozen. SB said that the air conditioning was in good repair, but he did an exterior cleaning that often improves the functionality. He also said that the extractor fan was venting properly.
23. The Landlord submits that there were no maintenance issues with the rental unit, and even minor issues like the rotting deck boards were repaired immediately after she learned about them. The Landlord submits that the Tenants are extremely litigious, and they have brought a multi-million dollar civil claim against the Landlord. They further submit that the Tenants have been found to have lied to the Board in another matter, LTB-L-053121-23 issued on July 15, 2024.

Reasons and Analysis:

24. As explained below, the Tenants did not prove the allegations contained in the application on a balance of probabilities. Therefore, the application is dismissed.
25. In accordance with section 20 of the *Residential Tenancies Act 2006* (the Act), *a landlord is responsible for providing and maintaining a residential complex, including the rental units in it, in a good state of repair and fit for habitation and for complying with health, safety, housing and maintenance standards.*
26. As set out in the Landlord and Tenant Board's Interpretation Guideline 5, it is established law that it is not sufficient to establish that there was a maintenance issue. The Board must also consider whether the Landlord's response, once informed of the issue, was timely, appropriate and effective to remedy the problem. Where this is the case, the Landlord cannot be said to have been in breach of their section 20 obligation to maintain.
27. There was no written evidence at all that the Tenants ever informed the Landlord of a maintenance issue in the rental unit. Although the Tenants said that they told the Landlord about each issue via texts to the realtor, the only text that EC submitted into evidence related to a problem that was completely unrelated to anything raised in this application. In fact, the Landlord testified that the Tenants had their contact details from the beginning of the tenancy, and the Tenants never contacted her. Instead, the Tenants moved into the rental unit and chose not to pay a penny of rent. Even when the Landlord's private investigators came to inspect things in July 2023, soon after the Tenants had moved in and ceased to pay anything, the Tenants did not say anything about any maintenance issue. EC relied heavily on a home inspection report that he commissioned in July 2024,

presumably with the hope of using it against the Landlord, right after the Landlord's L1 order had been issued in which the Tenants were found to owe over \$75,000.00 to the Landlord. In that order, LTB-L-053121-23 issued on July 15, 2024, the hearing Member found that although the Tenants had informed the Board that they paid all the rent claimed by the Landlord into the Board, in fact all of it had gone NSF. The Member found, at paragraph #18 of the Determinations that "...I do not find that the Tenants have any intention of repaying their arrears nor do they have any means to do same...." The Tenants' requested a review of the order, which was denied in order LTB-L-053121-23-RV issued on July 29, 2024. It does not seem coincidental that the Tenants commissioned their home report almost immediately after their review request was denied. The Tenants further appealed the Board order to the Divisional Court, which was quashed on March 21, 2025. They attempted to further delay eviction by filing a further request for a review with the Board, which was denied on May 16, 2025. However, perhaps the stay had been lifted by Divisional Court in the interim, and the Landlord managed to enforce eviction on May 14, 2025, by which time the Tenants owed the Landlord over \$100,000.00.

28. Based on the circumstances disclosed above, I find that the Tenants' testimony lacks credibility, and EC had no documentary evidence to support informing the Landlord about any maintenance issue. The only documentary information about maintenance received by the Landlord was the Tenants' home report, which was brought to the attention of the Landlord in November 2024. I find that it is not relevant that the Landlord only remembers receiving it on November 20, 2024, because it is undisputed that it was passed on immediately to SB, and he dealt with any maintenance raised by the report at least a week or so before that date. It is likely that the Landlord received it a week or two earlier than she remembered. In any case, the Landlord immediately sent her contractor to the rental unit to inspect, and he found all in good condition, except for two rotting deck boards which were immediately replaced. Consequently, I find that the Tenant has failed to prove any breach of the Landlord's maintenance obligation. Since I did not hear submissions about whether the Tenants' application was filed in retaliation against the Landlord, and therefore whether it constitutes an abuse of process, it is not open to me to impose a Board administrative fine on the Tenants.

It is ordered that:

1. The Tenants' application is dismissed.

December 10, 2025

Date Issued

Nancy Morris

Member, Landlord and Tenant Board

15 Grosvenor Street, Ground Floor Toronto
ON M7A 2G6

If you have any questions about this order, call 416-645-8080 or toll free at 1-888-332-3234.